

STATE OF OKLAHOMA

2nd Session of the 60th Legislature (2026)

COMMITTEE SUBSTITUTE
FOR
HOUSE JOINT
RESOLUTION NO. 1055

By: Osburn

COMMITTEE SUBSTITUTE

[Secretary of State - refer to people - proposed
amendment - Section 4 of Article VI - Constitution
of the State of Oklahoma - new Section 36 - State
Superintendent of Public Instruction - appointed
position - appointment - removal - qualifications -
ballot title - filing]

BE IT RESOLVED BY THE HOUSE OF REPRESENTATIVES AND THE SENATE OF THE
2ND SESSION OF THE 60TH OKLAHOMA LEGISLATURE:

SECTION 1. The Secretary of State shall refer to the people for
their approval or rejection, as and in the manner provided by law,
the following proposed amendment to Section 4 of Article VI of the
Constitution of the State of Oklahoma to read as follows:

Section 4. A. The term of office of the Governor, Lieutenant
Governor, State Auditor and Inspector, Attorney General, State

1 Treasurer, and Commissioner of Labor ~~and Superintendent of Public~~
2 ~~Instruction~~ shall be four (4) years from the second Monday of
3 January next after their election. The said officers shall be
4 eligible to immediately succeed themselves except as otherwise
5 provided in this section.

6 B. 1. No person shall be eligible to serve as Governor for a
7 period of time in excess of eight (8) years. Such years need not be
8 consecutive. Any years served by a person serving as Governor for
9 less than a full term to fill a vacancy in such office shall not be
10 included in the eight-year limitation set forth herein.

11 2. Notwithstanding the provisions of this amendment, any person
12 serving as Governor at the time of passage of this amendment shall
13 be eligible to complete the term of office to which he or she was
14 elected but shall not be eligible to serve as Governor for a period
15 of time in excess of eight (8) years, excluding years served for
16 less than a full term to fill a vacancy in such office. The
17 provisions of this paragraph shall apply regardless of whether such
18 years were served prior to or after passage of this amendment.

19 C. No person shall be eligible to serve as Lieutenant Governor,
20 State Auditor and Inspector, Attorney General, State Treasurer,
21 Commissioner of Labor or Superintendent of Public Instruction for a
22 period of time in excess of eight (8) years. Such years need not be
23 consecutive. Any years served by a person elected or appointed to
24 serve less than a full term to fill a vacancy in any such office

1 shall not be included in the limitations set forth herein. Any
2 person serving in such position at the time of passage of this
3 amendment shall be eligible to complete the term for which he or she
4 has been elected and shall be eligible to serve an additional eight
5 (8) years thereafter, notwithstanding the provisions of this
6 amendment.

7 D. The Legislature is hereby authorized to enact laws to
8 implement the provisions of subsections B and C of this section.

9 E. Beginning November 1, 2034, the position of State
10 Superintendent of Public Instruction shall be appointed in
11 accordance with Section 36 of Article VI of the Oklahoma
12 Constitution.

13 SECTION 2. The Secretary of State shall refer to the people for
14 their approval or rejection, as and in the manner provided by law,
15 the following proposed amendment to the Constitution of the State of
16 Oklahoma by adding a new Section 36 to Article VI thereof, to read
17 as follows:

18 A. Beginning November 1, 2034, the State Superintendent of
19 Public Instruction shall be appointed using the following process:

20 1. The Oklahoma State Board of Education (OSBE) shall gather
21 applications, conduct interviews of applicants, and shall provide a
22 list of not less than three, and not more than five, candidates for
23 the Governor to choose from for the position of State Superintendent
24 of Public Instruction. The Governor shall appoint one of the

1 candidates from the list to serve as the State Superintendent of
2 Public Instruction;

3 2. The Oklahoma State Senate shall vote whether to confirm the
4 Governor's appointee; and

5 3. Should the Senate fail to confirm the Governor's appointee
6 by a two-thirds (2/3) vote, then the Governor shall select a new
7 appointee from the original list of candidates.

8 B. The State Superintendent of Public Instruction may be
9 removed from office by either:

10 1. A two-thirds (2/3) vote of the members elected to and
11 constituting each chamber of the Legislature to remove the State
12 Superintendent of Public Instruction; or

13 2. By order of the Governor and two-thirds (2/3) vote of one
14 chamber of the Legislature to remove the State Superintendent of
15 Public Instruction.

16 C. The Legislature shall establish a list of qualifications for
17 the position of the State Superintendent of Public Instruction.

18 SECTION 3. The Ballot Title for the proposed Constitutional
19 amendment as set forth in SECTIONS 1 and 2 of this resolution shall
20 be in the following form:

21 BALLOT TITLE

22 Legislative Referendum No. _____ State Question No. _____

23 THE GIST OF THE PROPOSITION IS AS FOLLOWS:
24

1 This measure amends the Oklahoma Constitution in Section 4 of
2 Article 6 and adds a new Section 36. The measure creates an
3 appointment and removal process for the State Superintendent of
4 Public Instruction. The process shall consist of the Oklahoma
5 State Board of Education gathering applications, interviewing
6 applicants, preparing a list of eligible candidates to be given
7 to the Governor, the Governor selecting a candidate from the
8 list, and the Senate voting whether to confirm the Governor's
9 selection. Should the Senate fail to confirm the Governor's
10 selection by a two-thirds (2/3) vote, then the Governor shall
11 make a new selection from the original provided list. The State
12 Superintendent of Public Instruction may be removed from office
13 by a two-thirds (2/3) vote of each chamber of the Legislature,
14 or by order of the Governor and a two-thirds (2/3) vote of one
15 chamber of the Legislature. This measure also directs the
16 Legislature to develop a list of qualifications for the position
17 of State Superintendent of Public Instruction. This process
18 shall not take effect until November 1, 2034.

19 SHALL THE PROPOSAL BE APPROVED?

20 FOR THE PROPOSAL — YES _____

21 AGAINST THE PROPOSAL — NO _____

22 SECTION 4. The Chief Clerk of the House of Representatives,
23 immediately after the passage of this resolution, shall prepare and
24 file one copy thereof, including the Ballot Title set forth in

1 SECTION 3 hereof, with the Secretary of State and one copy with the
2 Attorney General.

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